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Gun violence drives up crime in California despite most stringent gun laws in the country

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California has the strictest firearm laws in the United States, but a large number of violent crimes still involve a firearm.

A new report from the Public Policy Institute of California lays out the number of violent crimes involving a firearm in the state, and the numbers are staggering. While the number fell to 24.3% in 2022, the number is still up from pre-pandemic levels in 2019. Since 2019, aggravated assaults with a gun have increased by 61%, homicides by 38%, and robberies by 13%.

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The most recent crime statistics show violent crime has, for the most part, continued to rise since 2014, and guns are widely contributing to the problem.

In the final week of the 2023 legislative session, California wrapped up a number of bills aimed at preventing gun violence, sending a handful to Gov. Gavin Newsom's (D-CA) desk.

In a win for Democrats, the legislature passed a bill that proposed to impose an 11% state excise tax on firearm and ammunition sales. Assembly Bill 28, sponsored by Democratic Assemblyman Jesse Gabriel, states it will provide $160 million annually from the taxes raised and allocate the funds to gun violence prevention programs through the California Treasury.

Another legislative hit that swept headlines in recent months was Newsom's proposed 28th constitutional amendment to enact gun safety measures nationally. California lawmakers approved the adoption of Newsom's resolution calling for a constitutional convention.

The Democratic governor's suggested 28th amendment to the Constitution had four components already included in California law: raising the minimum age to buy a firearm to 21, mandating universal background checks, instituting a "reasonable" waiting period for all gun purchases, and banning rifles "that serve no other purpose than to kill as many people as possible in a short amount of time."

In a major upset for Democrats, California's high-capacity magazine ban was struck down by a federal judge last week. District Judge Roger Benitez of San Diego ruled that the state's ban on ammunition magazines that can hold more than 10 bullets was unconstitutional under the Second Amendment.

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California Attorney General Rob Bonta filed an immediate notice of appeal, citing Proposition 63, which was passed by California voters in 2016 and prevents possession of large-capacity magazines.

"In the past half-century, large-capacity magazines have been used in about three-quarters of gun massacres with 10 or more deaths and in 100% of gun massacres with 20 or more deaths," Bonta said. "We will continue to fight for our authority to keep Californians safe from weapon enhancements designed to cause mass casualties. In the meantime, if the Ninth Circuit stays the decision pending appeal, large-capacity magazines will remain unlawful for purchase, transfer, or possession in California."

Original Location: Gun violence drives up crime in California despite most stringent gun laws in the country

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